

HOUSE BILL No. 1106

DIGEST OF INTRODUCED BILL

Citations Affected: IC 12-7-2-149.1; IC 12-17.2; IC 16-38-5-3; IC 20-27-9-12; IC 31-9-2; IC 31-25-2-29; IC 31-33; IC 31-34-5-6.

Synopsis: Various family matters. Allows a provider to remain eligible to receive a voucher payment until a final determination is made that the provider's license or eligibility is no longer in good standing. Provides that a child care center is exempt from licensure if the child care center complies with all of the requirements for child care ministries, including registration. Provides certain qualifications that a child care center's director must meet. Requires the department of child services to create and periodically update a medical history form and ensure that certain people receive the medical history form. Provides that the crime of false reporting is a Level 6 felony if the alleged conduct, if true, would constitute certain felonies. Requires that, if a child is alleged to be a child in need of services and has been removed from the child's home and placed in an out-of-home placement, a court must order each biological parent who retains visitation or parenting time rights to complete a medical history form and may, under certain circumstances, temporarily suspend a biological parent's visitation or parenting time. Allows a biological parent to amend or complete the medical history form. Requires the court to reconsider any previous order suspending visitation or parenting time if the court makes certain findings. Makes conforming changes.

Effective: July 1, 2026.

Manning

January 5, 2026, read first time and referred to Committee on Family, Children and Human Affairs.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1106

A BILL FOR AN ACT to amend the Indiana Code concerning family law and juvenile law.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 12-7-2-149.1, AS AMENDED BY P.L.174-2025,
2 SECTION 13, AND P.L.243-2025, SECTION 2, IS AMENDED TO
3 READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 149.1.
4 "Provider" means the following:

5 (1) For purposes of IC 12-10-7, the meaning set forth in
6 IC 12-10-7-3.

7 (2) For purposes of the following statutes, an individual, a
8 partnership, a corporation, or a governmental entity that is
9 enrolled in the Medicaid program under rules adopted under
10 IC 4-22-2 by the office of Medicaid policy and planning:

11 (A) IC 12-14-1 through IC 12-14-8.

12 (B) IC 12-15, except IC 12-15-32, IC 12-15-33, and
13 IC 12-15-34.

14 (C) IC 12-17.6.

15 (3) Except as provided in subdivisions (4) and (6), for purposes
16 of IC 12-17.2, a person who operates a child care center or child
17 care home under IC 12-17.2.



(4) For purposes of IC 12-17.2-3.5, a person that:

(A) provides child care; and

(B) is directly paid for the provision of the child care under the federal Child Care and Development Fund voucher program administered under 45 CFR 98 and 45 CFR 99.

The term does not include an individual who provides services to a person described in clauses (A) and (B), regardless of whether the individual receives compensation.

(5) For purposes of IC 12-21-1 through IC 12-29-2, an organization:

(A) that:

(i) provides mental health services, as defined under 42 U.S.C. 300x-2(c);

(ii) provides addiction services; or

(iii) provides children's mental health services;

(B) that has entered into a provider agreement with the division of mental health and addiction under IC 12-21-2-7 to provide services in the least restrictive, most appropriate setting; and

(C) that is operated by one (1) of the following:

(i) A city, town, county, or other political subdivision of the state.

(ii) An agency of the state or of the United States.

(iii) A political subdivision of another state.

(iv) A hospital owned or operated by a unit of government or a building authority that is organized for the purpose of constructing facilities to be leased to units of government.

(v) A corporation incorporated under IC 23-7-1.1 (before its repeal August 1, 1991) or IC 23-17.

(vi) An organization that is exempt from federal income taxation under Section 501(c)(3) of the Internal Revenue Code.

(vii) A university or college.

(6) For purposes of IC 12-17.2-2-10, the following:

(A) A person described in subdivision (4).

(B) A child care center licensed under IC 12-17.2-4 **or registered under IC 12-17.2-6.**

(C) A child care home licensed under IC 12-17.2-5.

(7) For purposes of IC 12-11-13, an authorized provider entity that delivers services administered by the bureau of disabilities services.

SECTION 2. IC 12-17.2-2-1, AS AMENDED BY P.L.1-2025,



1 SECTION 171, IS AMENDED TO READ AS FOLLOWS
2 [EFFECTIVE JULY 1, 2026]: Sec. 1. The division shall perform the
3 following duties:

4 (1) Administer the licensing and monitoring of child care centers
5 or child care homes in accordance with this article.

6 (2) Ensure that a national criminal history background check of
7 the following is completed through the state police department
8 under IC 10-13-3-39 before issuing a license:

9 (A) An applicant for a license.

10 (B) An employee or volunteer of an applicant who may be
11 present on the premises of the child care center or child care
12 home during the operating hours of the child care center or
13 child care home.

14 (C) If an applicant is applying for a license to operate a child
15 care home, the following:

16 (i) The applicant's spouse.

17 (ii) The applicant's household members who are at least
18 eighteen (18) years of age or who are less than eighteen (18)
19 years of age but have previously been waived from juvenile
20 court to adult court.

21 (3) Ensure that a national criminal history background check of
22 the following is completed through the state police department
23 under IC 10-13-3-39 before registering a child care ministry:

24 (A) An applicant for a child care ministry registration.

25 (B) An employee or volunteer of an applicant who may be
26 present on the premises of the child care ministry during the
27 operating hours of the child care ministry.

28 (4) Provide for the issuance, denial, suspension, and revocation of
29 licenses.

30 (5) Cooperate with governing bodies of child care centers and
31 child care homes and their staffs to improve standards of child
32 care.

33 (6) Prepare at least biannually a directory of licensees with a
34 description of the program capacity and type of children served
35 that will be distributed to the legislature, licensees, and other
36 interested parties as a public document.

37 (7) Deposit all license application fees collected under section 2
38 of this chapter in the division of family resources child care fund
39 established by section 3 of this chapter.

40 (8) Require each child care center or child care home to record
41 proof of a child's date of birth before accepting the child. A child's
42 date of birth may be proven by the child's original birth certificate



or other reliable proof of the child's date of birth, including a duly attested transcript of a birth certificate.

(9) Provide a website through which members of the public may obtain the following information:

(A) Information concerning violations of this article by a licensed child care provider, including:

(i) the identity of the child care provider;

(ii) the date of the violation; and

(iii) action taken by the division in response to the violation.

(B) Current status of a child care provider's license.

(C) Other relevant information.

The website may not contain the address of a child care home or information identifying an individual child. However, the website may include the county and ZIP code in which a child care home is located.

(10) Provide or approve training concerning safe sleeping practices for children to:

(A) a provider who operates a child care program in the provider's home as described in IC 12-17.2-3.5-12.5;

(B) a child care home licensed under IC 12-17.2-5;

(C) a child care center licensed under IC 12-17.2-4 **or registered under IC 12-17.2-6;** and

(D) a child care ministry registered under IC 12-17.2-6;

including practices to reduce the risk of sudden infant death syndrome.

SECTION 3. IC 12-17.2-2-8, AS AMENDED BY P.L.160-2025, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8. The division shall exempt from licensure the following programs:

(1) A program for children enrolled in grades kindergarten through 12 that is operated by the department of education or a public or private school.

(2) A program for children who become at least three (3) years of age as of December 1 of a particular school year (as defined in IC 20-18-2-17) that is operated by the department of education or a public or private school.

(3) A nonresidential program for a child that provides child care for less than four (4) hours a day.

(4) A recreation program for children that operates for not more than ninety (90) days in a calendar year.

(5) A program whose primary purpose is to provide social, recreational, or religious activities for school age children, such



as scouting, boys club, girls club, sports, or the arts.

(6) A program operated to serve migrant children that:

(A) provides services for children from migrant worker families; and

(B) is operated during a single period of less than one hundred twenty (120) consecutive days during a calendar year.

(7) A child care ministry **or child care center** registered under IC 12-17.2-6.

(8) A child care home if the provider operates to serve migrant children.

(9) A child care program operated by a public or private school that does the following:

(A) Provides day care on school property for children in the school corporation in which the public or private school is located.

(B) Complies with health, safety, and sanitation standards as determined by the division under section 4 of this chapter for child care centers or in accordance with a variance or waiver of a rule governing child care centers approved by the division under section 10 of this chapter.

(C) Substantially complies with the fire and life safety rules as determined by the state fire marshal under rules adopted by the division under section 4 of this chapter for child care centers or in accordance with a variance or waiver of a rule governing child care centers approved by the division under section 10 of this chapter.

(10) A school age child care program (commonly referred to as a latch key program) established under IC 20-26-5-2 that is operated by:

(A) the department of education;

(B) a public or private school; or

(C) a public or private organization under a written contract with:

(i) the department of education; or

(ii) a public or private school.

(11) A child care program that:

(A) is operated by a public or private organization under a contract with a public or private school;

(B) serves children who are enrolled in the public or private school in:

(i) grades kindergarten through 12; or

(ii) a preschool program offered by a public or private



- 1 school as described in this subdivision; and
 2 (C) serves children who are:
 3 (i) attending school through remote or e-learning due to a
 4 disaster emergency declared under IC 10-14-3-12 or
 5 IC 10-14-3-29; or
 6 (ii) participating in a learning recovery program that
 7 administers an assessment to measure student learning loss
 8 and provides Indiana academic standards aligned
 9 instruction.
 10 (12) An educational program:
 11 (A) consisting of a group of not more than ten (10) students
 12 who attend the educational program in lieu of attending
 13 prekindergarten or kindergarten through grade 12 at a public
 14 or private school;
 15 (B) whose students meet in a single classroom in person or
 16 outside a classroom and which may include mixed age level
 17 groupings; and
 18 (C) that is under the supervision of a teacher or tutor.
 19 (13) If located in the same public or private school building:
 20 (A) a preschool program that is operated by the public or
 21 private school; and
 22 (B) either or both of the following:
 23 (i) A child care program described in subdivision (9).
 24 (ii) A school age child care program described in
 25 subdivision (10).
 26 (14) A child care program operated by a public or private school
 27 that does the following:
 28 (A) Provides day care on school property for children of
 29 employees of a business or organization with which the school
 30 has entered into a contract to provide services. If the school
 31 property is owned by the school, the school property must have
 32 been both:
 33 (i) owned by the school; and
 34 (ii) used for child care;
 35 on or before January 1, 2024.
 36 (B) Complies with health, safety, and sanitation standards as
 37 determined by the division under section 4 of this chapter for
 38 child care centers or in accordance with a variance or waiver
 39 of a rule governing child care centers approved by the division
 40 under section 10 of this chapter.
 41 (C) Substantially complies with the fire and life safety rules as
 42 determined by the state fire marshal under rules adopted by the



1 division under section 4 of this chapter for child care centers
 2 or in accordance with a variance or waiver of a rule governing
 3 child care centers approved by the division under section 10 of
 4 this chapter.

5 SECTION 4. IC 12-17.2-3.5-4, AS AMENDED BY P.L.121-2020,
 6 SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 7 JULY 1, 2026]: Sec. 4. (a) A provider is ineligible to receive a voucher
 8 payment if the provider:

9 (1) has been convicted of a:

10 (A) felony:

- 11 (i) related to the health or safety of a child;
- 12 (ii) that is a sex offense (as defined in IC 11-8-8-5.2);
- 13 (iii) that is a dangerous felony; or
- 14 (iv) that is not a felony otherwise described in items (i)
 15 through (iii), and less than ten (10) years have elapsed from
 16 the date the person was discharged from probation,
 17 imprisonment, or parole, whichever discharge date is latest;

18 (B) misdemeanor related to:

- 19 (i) the health or safety of a child; or
- 20 (ii) welfare fraud;

21 (C) misdemeanor for operating a child care center without a
 22 license under IC 12-17.2-4-35, or of a substantially similar
 23 offense committed in another jurisdiction if the offense is
 24 directly or indirectly related to jeopardizing the health or
 25 safety of a child; or

26 (D) misdemeanor for operating a child care home without a
 27 license under IC 12-17.2-5-35, or of a substantially similar
 28 offense committed in another jurisdiction if the offense is
 29 directly or indirectly related to jeopardizing the health or
 30 safety of a child;

31 (2) allows an individual who has been convicted of a crime
 32 specified under subdivision (1) to reside with the provider, if the
 33 provider operates a child care program in the provider's home;

34 (3) employs an individual or allows an individual to volunteer
 35 who:

36 (A) may be on the premises of the facility where the provider
 37 operates a child care program during operating hours of the
 38 child care program; and

39 (B) has been convicted of a crime specified in subdivision (1);

40 (4) has had a revocation of eligibility under this chapter during
 41 the immediately preceding two (2) years; or

42 (5) fails to meet the requirements of this chapter.



(b) A provider whose:

(1) license under IC 12-17.2-4 or IC 12-17.2-5; or

(2) compliance with this chapter;

is subject to an enforcement action is ~~ineligible~~ **eligible** to receive a voucher payment, ~~regardless of whether if~~ the provider meets the requirements of this chapter, until the outcome of any proceeding under IC 4-21.5 reflects a final determination that the provider's license or eligibility is **no longer** in good standing.

(c) **Subject to subsection (e)**, if the division decertifies a provider under this chapter, the provider:

(1) may reapply for eligibility to receive a voucher payment at any time that the provider is able to demonstrate compliance with this chapter; and

(2) is not eligible to receive a voucher payment under this chapter until the provider receives notice from the division that the provider's application under subdivision (1) has been approved.

(d) In determining whether a provider meets the requirements of this chapter, the division may not consider religious instruction or activities.

(e) The division may not decertify a provider until there has been a final determination in a proceeding under IC 4-21.5 that the provider's license or eligibility is no longer in good standing.

SECTION 5. IC 12-17.2-4-1 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. **(a) A child care center is exempt from licensure under this article if the child care center complies with all of the requirements in IC 12-17.2-6 for a child care ministry.**

~~(a) A person may not operate a child care center without a license issued under this article.~~

~~(b) The state or a political subdivision of the state may not operate a child care center without a license issued under this article.~~

~~(c) A person may not operate a child care center where:~~

~~(1) the number of children maintained on the premises at any one~~

~~(1) time is greater than the number authorized by the license; and~~

~~(2) the children are maintained in a building or place not designated by the license.~~

(b) A child care center may apply for licensure under this chapter. If a license is issued to the child care center, the child care center shall comply with state laws and rules governing licensure of the child care center.

SECTION 6. IC 12-17.2-4-3.6 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS



[EFFECTIVE JULY 1, 2026]: **Sec. 3.6. A child care center's director must meet one (1) of the following qualifications:**

(1) A bachelor of arts or bachelor of science degree from an accredited college or university in early childhood education or elementary education with a kindergarten endorsement and grades of C or better.

(2) Any bachelor of arts or bachelor of science degree from an accredited college or university must include one (1) of the following:

(A) Fifteen (15) credit hours in college level courses with documented content relating to the needs, skills, development, or teaching methods of children six (6) years of age or younger and grades of C or better.

(B) A child development associate (CDA).

(3) A two (2) year associate's degree in early childhood education from an accredited college or university, with a grade of C or better and a minimum of three (3) years of experience in an early childhood program.

(4) At least five (5) years working at an administrative level in a child care center or child care ministry.

SECTION 7. IC 12-17.2-6-1.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 1.5. If registered under this chapter, a child care center's director must meet one (1) of the qualifications set forth in IC 12-17.2-4-3.6.**

SECTION 8. IC 12-17.2-6-2, AS AMENDED BY P.L.187-2021, SECTION 45, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) An:

(1) unlicensed child care ministry under section 1 of this chapter;
or

(2) unlicensed child care center under IC 12-17.2-4;

may not operate unless the child care ministry **or child care center** has registered with and met the requirements of the division and the department of homeland security. Registration application forms shall be provided by the division and the department of homeland security.

(b) A registration application under this section must include a current and valid electronic mail address for the applicant.

(c) Registration under this section expires two (2) years after the date of issuance unless revoked, modified to a probationary or suspended status, or voluntarily returned.

SECTION 9. IC 12-17.2-6-16, AS AMENDED BY P.L.121-2020, SECTION 11, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE



JULY 1, 2026]: Sec. 16. (a) The following constitute sufficient grounds for denial of an application for registration under this chapter:

(1) A determination by the department of child services of child abuse or neglect (as defined in IC 31-9-2-14) by:

(A) the applicant;

(B) an employee of the applicant who may be present on the premises of the child care ministry during operating hours of the child care ministry; or

(C) a volunteer of the applicant who may be present on the premises of the child care ministry during operating hours of the child care ministry.

(2) A criminal conviction of the applicant, or an employee or volunteer of the applicant who may be present on the premises of the child care ministry during operating hours of the child care ministry, of any of the following:

(A) A felony:

(i) related to the health or safety of a child;

(ii) that is a sex offense (as defined in IC 11-8-8-5.2);

(iii) that is a dangerous felony; or

(iv) that is not a felony otherwise described in items (i) through (iii), and less than ten (10) years have elapsed from the date the person was discharged from probation, imprisonment, or parole, whichever discharge date is latest.

(B) A misdemeanor related to the health or safety of a child.

(C) A misdemeanor for operating a child care ministry without a registration under this chapter, or a substantially similar offense in another jurisdiction if the offense is directly or indirectly related to jeopardizing the health or safety of a child.

(D) A misdemeanor for operating a child care center without a license under IC 12-17.2-4-35, or a substantially similar offense in another jurisdiction if the offense is directly or indirectly related to jeopardizing the health or safety of a child.

(E) A misdemeanor for operating a child care home without a license under IC 12-17.2-5-35, or a substantially similar offense in another jurisdiction if the offense is directly or indirectly related to jeopardizing the health or safety of a child.

(3) A determination by the division that the applicant made false statements in the applicant's application for registration.

(4) A determination by the division that the applicant made false statements in the records required by the division.

(5) A determination by the division that the applicant previously operated a:



- 1 (A) child care ministry without a registration under this
- 2 chapter;
- 3 (B) child care center without a license under IC 12-17.2-4 **or**
- 4 **registration under this chapter;** or
- 5 (C) child care home without a license under IC 12-17.2-5.
- 6 (b) Notwithstanding subsection (a)(2), if:
- 7 (1) a registration application is denied due to a criminal
- 8 conviction of an employee or a volunteer of the applicant; and
- 9 (2) the division determines that the employee or volunteer has
- 10 been dismissed by the applicant;
- 11 the criminal conviction of the former employee or former volunteer
- 12 does not require denial of the registration application.
- 13 SECTION 10. IC 12-17.2-6-19, AS AMENDED BY P.L.121-2020,
- 14 SECTION 12, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
- 15 JULY 1, 2026]: Sec. 19. (a) The following constitute sufficient grounds
- 16 for revocation of a registration under this chapter:
- 17 (1) A determination by the department of child services of child
- 18 abuse or neglect (as defined in IC 31-9-2-14) by:
- 19 (A) the operator of the child care ministry;
- 20 (B) an employee of the child care ministry who may be present
- 21 on the premises of the child care ministry during operating
- 22 hours of the child care ministry; or
- 23 (C) a volunteer of the child care ministry who may be present
- 24 on the premises of the child care ministry during operating
- 25 hours of the child care ministry.
- 26 (2) A criminal conviction of the operator of the child care
- 27 ministry, or an employee or volunteer of the child care ministry
- 28 who may be present on the premises of the child care ministry
- 29 during operating hours of the child care ministry, of any of the
- 30 following:
- 31 (A) A felony:
- 32 (i) related to the health or safety of a child;
- 33 (ii) that is a sex offense (as defined in IC 11-8-8-5.2);
- 34 (iii) that is a dangerous felony; or
- 35 (iv) that is not a felony otherwise described in items (i)
- 36 through (iii), and less than ten (10) years have elapsed from
- 37 the date the person was discharged from probation,
- 38 imprisonment, or parole, whichever discharge date is latest.
- 39 (B) A misdemeanor related to the health or safety of a child.
- 40 (C) A misdemeanor for operating a child care ministry without
- 41 a registration under this chapter, or a substantially similar
- 42 offense in another jurisdiction if the offense is directly or



indirectly related to jeopardizing the health or safety of a child.

(D) A misdemeanor for operating a child care center without a license under IC 12-17.2-4-35, or a substantially similar offense in another jurisdiction if the offense is directly or indirectly related to jeopardizing the health or safety of a child.

(E) A misdemeanor for operating a child care home without a license under IC 12-17.2-5-35, or a substantially similar offense in another jurisdiction if the offense is directly or indirectly related to jeopardizing the health or safety of a child.

(3) A determination by the division that the operator of the child care ministry made false statements in the child care ministry's registration application.

(4) A determination by the division that the operator of the child care ministry made false statements in the records required by the division.

(5) A determination by the division that the operator of the child care ministry previously operated a:

(A) child care ministry without a registration under this chapter;

(B) child care center without a license under IC 12-17.2-4 **or registration under this chapter;** or

(C) child care home without a license under IC 12-17.2-5.

(b) Notwithstanding subsection (a)(2), if:

(1) a registration is revoked due to a criminal conviction of an employee or a volunteer of the child care ministry; and

(2) the division determines that the employee or volunteer has been dismissed by the child care ministry;

the criminal conviction of the former employee or former volunteer does not require revocation of the registration.

SECTION 11. IC 12-17.2-7.2-2, AS AMENDED BY P.L.92-2024, SECTION 13, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. As used in this chapter, "eligible provider" refers to a provider that satisfies the following conditions:

(1) The provider is:

(A) a:

(i) child care center licensed under IC 12-17.2-4 **or registered under IC 12-17.2-6;**

(ii) child care home licensed under IC 12-17.2-5; or

(iii) child care ministry registered under IC 12-17.2-6;

that meets the standards of quality recognized by a Level 3 or Level 4 paths to QUALITY program rating;

(B) a public school, including a charter school;



(C) a nonpublic school that is accredited by the state board of education or a national or regional accreditation agency that is recognized by the state board of education; or

(D) a nonpublic school that is accredited to provide qualified early education services by an accrediting agency approved by the office of the secretary.

(2) The provider:

(A) provides qualified early education services to eligible children, limited eligibility children, and children of child care employees;

(B) complies with the agreement with the office concerning the delivery of qualified education services and the use of a prekindergarten voucher provided under this chapter; and

(C) complies with CCDF provider eligibility standards in accordance with federal requirements for health and safety.

SECTION 12. IC 16-38-5-3, AS AMENDED BY P.L.130-2021, SECTION 14, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. (a) Records maintained as part of the immunization data registry are confidential.

(b) The state department may release information from the immunization data registry to the individual or to the individual's parent or guardian if the individual is less than eighteen (18) years of age.

(c) Subject to subsection (d), the state department may release information in the immunization data registry concerning an individual to the following persons or entities:

(1) The immunization data registry of another state.

(2) A provider or a provider's designee.

(3) A local health department.

(4) An elementary or secondary school that is attended by the individual.

(5) A child care center that is:

(A) licensed under IC 12-17.2-4; **or**

(B) **registered under IC 12-17.2-6;**

in which the individual is enrolled.

(6) A child care home that is licensed under IC 12-17.2-5 in which the individual is enrolled.

(7) A child care ministry that is registered under IC 12-17.2-6 in which the individual is enrolled.

(8) The office of Medicaid policy and planning or a contractor of the office of Medicaid policy and planning.

(9) A child placing agency licensed under IC 31-27.



(10) A college or university (as defined in IC 21-7-13-10) that is attended by the individual.

(11) An entity, including a private entity, for the purpose of outreach and education to increase immunization rates, if the following conditions are met:

(A) The entity provides the following written information to the state department:

(i) Information concerning the proposed outreach and education, including the information the entity needs from the immunization data registry.

(ii) How the entity intends to use the information.

(iii) The safeguards the entity will take to protect the identity of each individual whose records will be released.

(B) The state department determines the proposed safeguards are adequate to protect the identity of each individual whose records will be released.

(C) An agreement is executed between the state department and the entity that specifies the entity's permitted use of the records and prohibits the release of names of individuals or any facts that may lead to the identification of an individual.

(12) The United States Centers for Disease Control and Prevention.

(13) An Indiana nonprofit entity that performs health data services for health care providers, if the state department executes a data use agreement with the entity that specifies the permitted use and disclosure of any released information.

(d) Before immunization data may be released to a person or an entity, the person or entity must enter into a data use agreement with the state department that provides that information that identifies a patient will not be released to any other person or entity without the written consent of the patient unless the release is to a person or entity described in subsection (c).

(e) The state department may release summary statistics regarding information in the immunization data registry to a person or entity that has entered into a data use agreement with the state department.

SECTION 13. IC 20-27-9-12, AS AMENDED BY P.L.168-2022, SECTION 10, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 12. (a) As used in this section, "child care center" means a nonresidential building where at least one (1) child receives child care from a provider licensed under IC 12-17.2-4 **or registered under IC 12-17.2-6:**

(1) while unattended by a parent;



(2) for regular compensation; and

(3) for more than four (4) hours but less than twenty-four (24) hours in each of ten (10) consecutive days per year, excluding intervening Saturdays, Sundays, and holidays.

(b) This subsection does not apply to a person with a developmental or physical disability who is provided transportation by a school corporation by means of a special purpose bus as provided in section 5(a)(3) of this chapter. An individual or entity who transports children in the care of a:

(1) preschool operated by a school corporation;

(2) public elementary school; or

(3) public secondary school;

on a public highway (as defined in IC 9-25-2-4) within or outside Indiana shall transport the children only in a school bus, a special purpose bus, or an appropriate vehicle. The school bus, special purpose bus, or appropriate vehicle may be used for transportation of the children to activities or for regular transportation between the residences of the children and the school.

(c) An individual or entity that transports children in the care of a child care center on a public highway (as defined in IC 9-25-2-4) within or outside Indiana in a vehicle designed and constructed for the accommodation of more than ten (10) passengers shall transport the children only in a school bus or special purpose bus.

(d) The operator of a:

(1) school bus that transports children as required under subsection (b) or (c) must meet the requirements of IC 20-27-8; and

(2) special purpose bus or an appropriate vehicle that transports children as required under subsection (b) or (c) must meet the requirements of section 5(c) of this chapter.

(e) This section does not prohibit the use of a public transportation system for the transportation of children if the motor carriage used is designed to carry at least twenty (20) passengers.

(f) This section does not prohibit a:

(1) preschool operated by a school corporation;

(2) public elementary school;

(3) public secondary school; or

(4) child care center;

from contracting with a common carrier for incidental charter bus service for nonregular transportation if the carrier and the carrier's motor coach comply with the Federal Motor Carrier Safety Regulations as prescribed by the United States Department of Transportation



1 Federal Highway Administration.

2 (g) Notwithstanding section 17 of this chapter, a person who
3 violates this section commits a Class B infraction.

4 SECTION 14. IC 31-9-2-31, AS AMENDED BY P.L.195-2018,
5 SECTION 20, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
6 JULY 1, 2026]: Sec. 31. (a) "Custodian", for purposes of the juvenile
7 law, means a person with whom a child resides.

8 (b) "Custodian", for purposes of IC 31-34-1, includes any person
9 who is:

10 (1) a license applicant or licensee of:

11 (A) a foster home or residential child care facility that is
12 required to be licensed or is licensed under IC 31-27;

13 (B) a child care center that is required to be licensed or is
14 licensed under IC 12-17.2-4; or

15 (C) a child care home that is required to be licensed or is
16 licensed under IC 12-17.2-5;

17 (2) a person who is responsible for care, supervision, or welfare
18 of children while providing services as an owner, operator,
19 director, manager, supervisor, employee, or volunteer at:

20 (A) a home, center, or facility described in subdivision (1);

21 (B) a:

22 (i) child care ministry, as defined in IC 12-7-2-28.8; **or**

23 (ii) **child care center;**

24 that is exempt from licensing requirements and is registered or
25 required to be registered under IC 12-17.2-6;

26 (C) a home, center, or facility of a child care provider, as
27 defined in IC 12-7-2-149.1(5);

28 (D) a home, center, or facility that is the location of a program
29 that provides child care, as defined in section 16.3 of this
30 chapter, to serve migrant children and that is exempt from
31 licensing under IC 12-17.2-2-8(6), whether or not the program
32 is certified as described in IC 12-17.2-2-9; or

33 (E) a school, as defined in section 113.5 of this chapter;

34 (3) a child caregiver, as defined in section 16.4 of this chapter;

35 (4) a member of the household of the child's noncustodial parent;
36 or

37 (5) an individual who has or intends to have direct contact, on a
38 regular and continuing basis, with a child for whom the individual
39 provides care and supervision.

40 SECTION 15. IC 31-9-2-78.5 IS ADDED TO THE INDIANA
41 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
42 [EFFECTIVE JULY 1, 2026]: **Sec. 78.5. "Medical history form", for**



purposes of IC 31-25-2-29 and IC 31-34-5-6, means a standardized form prescribed by the department of child services to collect the following information:

(1) The child's personal medical history, including diagnoses, hospitalizations, medications, allergies, and any other significant medical condition.

(2) The known family medical history of the child's biological parents and other biological relatives, to the extent known to the biological parent.

SECTION 16. IC 31-25-2-29 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 29. (a) The department shall create and periodically update a medical history form (as defined in IC 31-9-2-78.5).

(b) The department shall ensure the following:

(1) Each biological parent subject to IC 31-34-5-6 is provided the medical history form and information on how to complete the medical history form.

(2) Each person listed under IC 31-34-5-6(c) receives a copy of the completed medical history form and any updates.

SECTION 17. IC 31-33-8-1, AS AMENDED BY P.L.198-2019, SECTION 7, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) The department shall initiate an appropriately thorough child protection assessment of every report of known or suspected child abuse or neglect the department receives, whether in accordance with this article or otherwise.

(b) If a report of known or suspected child abuse or neglect is received from a judge or prosecutor requesting the department to initiate a child protection assessment, the department shall initiate an assessment in accordance with this section.

(c) If a report of known or suspected child abuse or neglect is received from:

- (1) medical personnel;
- (2) school personnel;
- (3) a social worker;
- (4) law enforcement officials or personnel;
- (5) judiciary personnel; or
- (6) prosecuting attorney personnel;

the department shall forward the report to the local office to determine if the department will initiate an assessment in accordance with this section.

(d) If the department believes that a child is in imminent danger of



1 serious bodily harm, the department shall initiate an onsite assessment
2 immediately, but not later than two (2) hours, after receiving the report.

3 (e) If the report alleges a child may be a victim of child abuse, the
4 assessment shall be initiated immediately, but not later than
5 twenty-four (24) hours after receipt of the report.

6 (f) If reports of child neglect are received, the assessment shall be
7 initiated within a reasonably prompt time, but not later than five (5)
8 days, with the primary consideration being the well-being of the child
9 who is the subject of the report.

10 (g) If the report alleges that a child lives with a parent, guardian, or
11 custodian who is married to or lives with a person who:

12 (1) has been convicted of:

13 (A) neglect of a dependent under IC 35-46-1-4; or

14 (B) a battery offense under IC 35-42-4; or

15 (2) is required to register as a sex or violent offender under
16 IC 11-8-8;

17 the department shall initiate an assessment within a reasonably prompt
18 time, but not later than five (5) days after the department receives the
19 report, with the primary consideration being the well-being of the child
20 who is the subject of the report.

21 (h) If the safety or well-being of a child appears to be endangered or
22 the facts otherwise warrant, the assessment shall be initiated regardless
23 of the time of day.

24 (i) If a report alleges abuse or neglect and involves a child care
25 ministry **or child care center** that is exempt from licensure under
26 IC 12-17.2-6, the department and the appropriate law enforcement
27 agency shall jointly conduct an investigation. The investigation shall
28 be conducted under the requirements of this section and section 2(b) of
29 this chapter.

30 SECTION 18. IC 31-33-18-2, AS AMENDED BY P.L.54-2024,
31 SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
32 JULY 1, 2026]: Sec. 2. Except as otherwise prohibited by federal law,
33 the reports and other material described in section 1(a) of this chapter
34 and the unredacted reports and other material described in section 1(b)
35 of this chapter shall be made available only to the following:

36 (1) Persons authorized by this article.

37 (2) A legally mandated public or private child protective agency
38 investigating a report of child abuse or neglect or treating a child
39 or family that is the subject of a report or record.

40 (3) Any of the following who are investigating a report of a child
41 who may be a victim of child abuse or neglect:

42 (A) A police officer or other law enforcement agency.



- 1 (B) A prosecuting attorney.
- 2 (C) A coroner, in the case of the death of a child.
- 3 (4) A physician who has before the physician a child whom the
- 4 physician reasonably suspects may be a victim of child abuse or
- 5 neglect.
- 6 (5) An individual legally authorized to place a child in protective
- 7 custody if:
- 8 (A) the individual has before the individual a child whom the
- 9 individual reasonably suspects may be a victim of abuse or
- 10 neglect; and
- 11 (B) the individual requires the information in the report or
- 12 record to determine whether to place the child in protective
- 13 custody.
- 14 (6) An agency having the legal responsibility or authorization to
- 15 care for, treat, or supervise a child who is the subject of a report
- 16 or record or a parent, guardian, custodian, or other person who is
- 17 responsible for the child's welfare.
- 18 (7) An individual named in the report or record who is alleged to
- 19 be abused or neglected or, if the individual named in the report is
- 20 a child or is otherwise incompetent, the individual's guardian ad
- 21 litem or the individual's court appointed special advocate, or both.
- 22 (8) Each parent, guardian, custodian, or other person responsible
- 23 for the welfare of a child named in a report or record and an
- 24 attorney of the person described under this subdivision, with
- 25 protection for the identity of reporters and other appropriate
- 26 individuals.
- 27 (9) A court, for redaction of the record in accordance with section
- 28 1.5 of this chapter, or upon the court's finding that access to the
- 29 records may be necessary for determination of an issue before the
- 30 court. However, except for disclosure of a redacted record in
- 31 accordance with section 1.5 of this chapter, access is limited to in
- 32 camera inspection unless the court determines that public
- 33 disclosure of the information contained in the records is necessary
- 34 for the resolution of an issue then pending before the court.
- 35 (10) A grand jury upon the grand jury's determination that access
- 36 to the records is necessary in the conduct of the grand jury's
- 37 official business.
- 38 (11) An appropriate state or local official responsible for child
- 39 protection services or legislation carrying out the official's official
- 40 functions.
- 41 (12) The community child protection team appointed under
- 42 IC 31-33-3 (or IC 31-6-11-14 before its repeal), upon request, to



enable the team to carry out the team's purpose under IC 31-33-3.

(13) A person about whom a report has been made, with protection for the identity of:

(A) any person reporting known or suspected child abuse or neglect; and

(B) any other person if the person or agency making the information available finds that disclosure of the information would be likely to endanger the life or safety of the person.

(14) An employee of the department, a caseworker, or a juvenile probation officer conducting a criminal history check under IC 31-26-5, IC 31-34, or IC 31-37 to determine the appropriateness of an out-of-home placement for a:

(A) child at imminent risk of placement;

(B) child in need of services; or

(C) delinquent child.

The results of a criminal history check conducted under this subdivision must be disclosed to a court determining the placement of a child described in clauses (A) through (C).

(15) A local child fatality review team established under IC 16-49-2.

(16) The statewide child fatality review committee established by IC 16-49-4.

(17) The department.

(18) The division of family resources, if the investigation report:

(A) is classified as substantiated; and

(B) concerns:

(i) an applicant for a license to operate;

(ii) a person licensed to operate;

(iii) an employee of; ~~or~~

(iv) a volunteer providing services at; **or**

(v) an applicant to register;

a child care center licensed under IC 12-17.2-4, ~~or~~ a child care home licensed under IC 12-17.2-5, **or a child care center registered under IC 12-17.2-6.**

(19) A citizen review panel established under IC 31-25-2-20.4.

(20) The department of child services ombudsman established by IC 4-13-19-3.

(21) The secretary of education with protection for the identity of:

(A) any person reporting known or suspected child abuse or neglect; and

(B) any other person if the person or agency making the information available finds that disclosure of the information



- 1 would be likely to endanger the life or safety of the person.
- 2 (22) The state child fatality review coordinator employed by the
- 3 Indiana department of health under IC 16-49-5-1.
- 4 (23) A person who operates a child caring institution, group
- 5 home, or secure private facility if all the following apply:
- 6 (A) The child caring institution, group home, or secure private
- 7 facility is licensed under IC 31-27.
- 8 (B) The report or other materials concern:
- 9 (i) an employee of;
- 10 (ii) a volunteer providing services at; or
- 11 (iii) a child placed at;
- 12 the child caring institution, group home, or secure private
- 13 facility.
- 14 (C) The allegation in the report occurred at the child caring
- 15 institution, group home, or secure private facility.
- 16 (24) A person who operates a child placing agency if all the
- 17 following apply:
- 18 (A) The child placing agency is licensed under IC 31-27.
- 19 (B) The report or other materials concern:
- 20 (i) a child placed in a foster home licensed by the child
- 21 placing agency;
- 22 (ii) a person licensed by the child placing agency to operate
- 23 a foster family home;
- 24 (iii) an employee of the child placing agency or a foster
- 25 family home licensed by the child placing agency; or
- 26 (iv) a volunteer providing services at the child placing
- 27 agency or a foster family home licensed by the child placing
- 28 agency.
- 29 (C) The allegations in the report occurred in the foster family
- 30 home or in the course of employment or volunteering at the
- 31 child placing agency or foster family home.
- 32 (25) The National Center for Missing and Exploited Children.
- 33 (26) A local domestic violence fatality review team established
- 34 under IC 12-18-8, as determined by the department to be relevant
- 35 to the death or near fatality that the local domestic violence
- 36 fatality review team is reviewing.
- 37 (27) The statewide domestic violence fatality review committee
- 38 established under IC 12-18-9-3, as determined by the department
- 39 to be relevant to the death or near fatality that the statewide
- 40 domestic violence fatality review committee is reviewing.
- 41 (28) The statewide maternal mortality review committee
- 42 established under IC 16-50-1-3, as determined by the department



1 to be relevant to the case of maternal morbidity or maternal
2 mortality that the statewide maternal mortality review committee
3 is reviewing.

4 (29) A local fetal-infant mortality review team established under
5 IC 16-49-6, as determined by the department to be relevant to the
6 case of fetal or infant fatality that the local fetal-infant mortality
7 review team is reviewing.

8 (30) A suicide and overdose fatality review team established
9 under IC 16-49.5-2, as determined by the department to be
10 relevant to the case of a suicide or overdose fatality that the
11 suicide and overdose fatality review team is reviewing.

12 (31) The office of administrative law proceedings for a matter that
13 is the subject of an administrative proceeding before the office of
14 administrative law proceedings.

15 (32) A tribal representative, agency, or organization authorized by
16 the Indian child's tribe to care for, diagnose, treat, review,
17 evaluate, or monitor active efforts regarding an Indian child, and
18 the Indian child's parent, guardian, or custodian.

19 (33) The United States Department of State and foreign
20 governments to comply with federal law and treaties.

21 (34) A child advocacy center when the child advocacy center has
22 before it an investigation of child abuse or neglect in which it is
23 facilitating a forensic interview or facilitating a case discussion or
24 case review.

25 SECTION 19. IC 31-33-22-3, AS AMENDED BY P.L.158-2013,
26 SECTION 318, IS AMENDED TO READ AS FOLLOWS
27 [EFFECTIVE JULY 1, 2026]: Sec. 3. (a) **Except as provided in**
28 **subsection (e)**, a person who intentionally communicates to:

29 (1) a law enforcement agency; or

30 (2) the department;

31 a report of child abuse or neglect knowing the report to be false
32 commits **false reporting**, a Class A misdemeanor. ~~However, the~~
33 ~~offense is a Level 6 felony if the person has a previous unrelated~~
34 ~~conviction for making a report of child abuse or neglect knowing the~~
35 ~~report to be false.~~

36 (b) A person who intentionally communicates to:

37 (1) a law enforcement agency; or

38 (2) the department;

39 a report of child abuse or neglect knowing the report to be false is
40 liable to the person accused of child abuse or neglect for actual
41 damages. The finder of fact may award punitive damages and attorney's
42 fees in an amount determined by the finder of fact against the person.



(c) The director or the director's designee shall, after review by the department's attorney, notify the prosecuting attorney whenever the director or the director's designee and the department's attorney have reason to believe that a person has violated this section.

(d) A person who:

(1) has reason to believe that the person is a victim of a false report of child abuse or neglect under this section; and

(2) is not named in a pending criminal charge or under assessment relating to the report;

may file a complaint with the prosecuting attorney. The prosecuting attorney shall review the relevant child abuse or neglect records of the department and any other relevant evidence.

(e) The crime described in subsection (a) is a Level 6 felony if the:

(1) person has a previous unrelated conviction for making a report of child abuse or neglect knowing the report to be false; or

(2) conduct alleged, if true, would constitute a felony under:

(A) IC 35-42;

(B) IC 35-46; or

(C) any other felony offense against a child.

SECTION 20. IC 31-34-5-6 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 6. (a) If a child alleged to be a child in need of services is taken into custody under IC 31-34-4 and the court orders an out-of-home placement, the court shall order each biological parent who retains visitation or parenting time rights to complete a medical history form:**

(1) to the best of the parent's knowledge and belief; and

(2) under penalties of perjury.

(b) The department shall:

(1) provide the medical history form to each biological parent who is subject to an order under subsection (a);

(2) make reasonable efforts to assist the parent in understanding and completing the medical history form, including providing accommodations for language, literacy, or disability barriers; and

(3) file with the court a copy of each completed medical history form and a summary of the department's efforts to obtain a completed medical history form if a biological parent does not substantially complete the medical history form.

(c) Subject to applicable confidentiality laws, the department



1 shall provide a copy of each completed medical history form, and
 2 any updates to the medical history form, to the following:

3 (1) The child's foster parent, if any.

4 (2) A relative caregiver or other out-of-home placement
 5 provider for the child.

6 (3) Any legal guardian or custodian with whom the child is
 7 placed.

8 (d) After providing a biological parent with notice and an
 9 opportunity to be heard, the court may temporarily suspend the
 10 biological parent's visitation or parenting time with the child if the
 11 court finds by a preponderance of the evidence that:

12 (1) the biological parent is subject to an order under
 13 subsection (a);

14 (2) the department has complied with subsection (b); and

15 (3) the biological parent, without good cause, has failed to
 16 make a good faith effort to substantially complete the medical
 17 history form.

18 (e) In determining whether a biological parent has made a good
 19 faith effort to substantially complete the medical history form, the
 20 court shall consider:

21 (1) the information reasonably available to the biological
 22 parent concerning the child's medical history;

23 (2) the information reasonably available to the biological
 24 parent concerning the family medical history of the child's
 25 biological relatives;

26 (3) any documented barrier to the biological parent's ability
 27 to obtain information, including estrangement or lack of
 28 access to records; and

29 (4) any other circumstances the court considers relevant.

30 (f) In deciding whether to suspend visitation or parenting time
 31 under subsection (d), the court shall consider the best interests of
 32 the child, including:

33 (1) the importance of continued contact with the biological
 34 parent;

35 (2) the importance of obtaining accurate and complete
 36 medical and family medical history to support the child's
 37 physical and mental health; and

38 (3) whether a more limited restriction on visitation or
 39 parenting time would be sufficient to secure the biological
 40 parent's compliance.

41 (g) A suspension ordered under subsection (d):

42 (1) must be narrowly tailored in duration and scope to



1 encourage the biological parent's prompt compliance; and
2 (2) must be reviewed by the court at each periodic case review
3 or permanency hearing.
4 (h) A biological parent may, at any time, file an updated or
5 completed medical history form. If a court finds that the biological
6 parent has made a good faith effort to substantially complete the
7 medical history form, the court shall promptly reconsider any
8 previous order suspending visitation or parenting time.

